

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
JAMAL MCLEOD,

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK POLICE
OFFICER ANZOR KURASHVILI, SHIELD NUMBER
10498 in his individual and official capacity and JOHN DOE
NEW YORK POLICE OFFICERS 1-3, in their individual
and official capacities.

Defendant.

VERIFIED SUMMONS
AND COMPLAINT

Index No.:

Date Purchased:

Plaintiff designates:

NEW YORK as
the place for trial.

Basis for venue:
Incident Site

----- X
YOU ARE HEREBY SUMMONED to answer the complaint in this action, to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's Attorney within twenty (20) days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York) and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York

March 25, 2015

Yours, etc.,
MARNI F. SCHLESIGNER, ESQ.
Apicella & Schlesigner
Attorney for Plaintiff
1454 St. Nicholas Avenue
New York, New York 10033
(212) 568-4245

To: The City of New York
100 Church Street
New York, New York 10007



SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----x
JAMAL MCLEOD,

VERIFIED COMPLAINT

Plaintiff,
-against-

Index No.:

THE CITY OF NEW YORK, NEW YORK POLICE
OFFICER ANZOR KURASHVILI, SHIELD NUMBER
10498 in his individual and official capacity and JOHN DOE
NEW YORK POLICE OFFICERS 1-3, in their individual
and official capacities.

Defendant.
:

----- x

Plaintiff, as and for his verified complaint, by his attorney, MARNI F. SCHLESINGER, ESQ., an associate of the law firm, Apicella & Schlesinger, respectfully sets forth and alleges as follows, upon information and belief:

1. That at all times hereinafter mentioned, the Plaintiff, JAMAL MCLEOD, is a resident of New York County, City and State of New York.

2. That at all times hereinafter mentioned, the defendant, THE CITY OF NEW YORK (hereinafter referred to as "CITY") was and still is a domestic municipal corporation duly authorized and existing under and by virtue of the laws of the State of New York.

3. That at all times herein mentioned, the defendant, CITY, by its agents, servants and/or employees, operated, maintained and controlled the Police Department of the City of New York (hereinafter referred to as NYCPD), including all police officers and detectives thereof.

4. That at all times hereinafter mentioned, the NYCPD is an agency of the defendant CITY.

5. That at all times herein mentioned, it was and is the duty of each CITY police officer

not to use force except to the extent that it is legally justified, reasonable and necessary.

6. That at all times herein mentioned, it was and is the duty of each CITY police officer to report misconduct by any officer which he or she has witnessed.

7. That at all times herein mentioned, it was and is the duty of each CITY police officer not to falsely report an incident.

AS AND FOR A FIRST CAUSE OF ACTION FOR ASSAULT AND BATTERY

8. Plaintiff repeat, reiterates and realleges each and every allegation of this complaint in paragraphs "1" through "7" inclusive, with the same force and effect as if set forth at length herein.

9. On August 21, 2013 at approximately 9:30 A.M., at or about 650 Riverside Drive, also known as Riverbank Park, in the County of New York, York, City and State of New York, the Claimant, JAMAL MCLEOD, the Claimant lying on a park bench when he was suddenly and without warning unlawfully detained, questioned and held within the custody of police officers from the New York City Police Department, their agents servants and or employees, He was suddenly and without warning unlawfully detained and held within the custody of Police Officers from the New York City Police Department, their agents, servants and or employees including New York Police Officer Anzor Kurashvili, Shield Number: 10498, in his individual and official capacity and John Doe, New York Police Officers 1-3, in their individual and official capacities, who unlawfully and without justification did detain and arrest the Plaintiff, JAMAL MCLEOD, against his will and without probable cause and taken into custody by the New York City Police Department against his will and searched and then handcuffed behind his back. He was then transported in a patrol car to the 30th Precinct where the Plaintiff was searched and then fingerprinted and photographed and then placed in a cell with others where the Plaintiff was detained and held against his will. Thereafter the Plaintiff was handcuffed

behind his back and taken by patrol car and transported to Central Booking and placed in a cell with others and detained and held against his will. Plaintiff was thereafter eye-scanned and then placed in a cell with others and was detained and held against his will. The Plaintiff was detained and held against his will by Police officers of the New York City Police Department for a period of about seven (7) months for which Plaintiff should have been at liberty.

10. The aforesaid assault by said Police officers from the 30th Police Precinct from the New York City Police Department, their agents, servants and or employees including New York Police Officer Anzor Kurashvili, Shield Number 10498, in his individual and official capacity and John Doe, New York Police Officers 1-3, in their individual and official capacities and other members of the NYCPD was unprovoked and/or unwarranted and/or unjustified and/or unnecessary and/or excessive and/or legally unauthorized.

11. That said, Police officers from the 30th Police Precinct from the New York City Police Department, their agents, servants and or employees including New York Police Officer New York Police Officer Anzor Kurashvili, Shield Number: 10498, in his individual and official capacity and John Doe New York Police Officers 1-3, in their individual and official capacities and other members of the NYCPD conducted themselves in a manner which exhibited a gross indifference to and a wanton disregard for the life, health and safety of the Plaintiff, JAMAL MCLEOD.

12. That by reason of the aforesaid assault, the Plaintiff, JAMAL MCLEOD, sustained severe and serious injuries, a severe shock to his nervous system and certain internal injuries, and was caused to suffer severe mental anguish as a result thereof, and upon information and belief some of these injuries are of a permanent and lasting nature; was incapacitated from his regular activities; was hindered and prevented from performing and transacting his affairs and business; suffered neurological involvement and psychological distress, including but not limited to mental anguish and pre-impact

terror; suffered loss of enjoyment of life; was deprived of his liberty; was deprived of his rights, privileges and/or immunities as secured by the Constitution and/or other laws of the United States; suffered embarrassment, humiliation, shame, dishonor and loss of standing within the community and had medical expenses.

13. That by reason of the foregoing, the amount of damages sought exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A SECOND CAUSE OF ACTION

FOR FALSE ARREST AND UNLAWFUL IMPRISONMENT

14. Plaintiff repeats, reiterates and realleges each and every allegation of the complaint in paragraphs "1" through "13" inclusive, with the same force and effect as if set forth at length herein.

15. On August 21, 2013, Plaintiff was lying on a park bench when he was suddenly and without warning unlawfully detained, questioned and held within the custody of police officers from the New York City Police Department, their agents servants and or employees suddenly and without warning unlawfully questioned, stopped, detained and held within the custody of Police Officers from the New York City Police Department, their agents servants and or employees who unlawfully and without justification did stop, detain and arrest the Plaintiff against his will and without probable cause. Plaintiff was unlawfully stopped and unlawfully detained and arrested at approximately 9:30 A.M. about 650 Riverside Drive, also known as Riverbank Park, in the County of New York, York, City and State of New York, by Police Officers from the 30th Police Precinct from the New York City Police Department, their agents, servants and or employees including New York Police Officer Anzor Kurashvili, Shield Number: 10498, in his individual and official capacity and John Doe, New York Police Officers 1-3, in their individual and official capacities and other members of the NYCPD, even though the Plaintiff had been engaged in no unlawful conduct.

16. The arrest of Plaintiff was intentional and unprivileged.

17. The arrest of Plaintiff was caused by Police officers from the 30th Police Precinct officers from the 30th Police Precinct from the New York City Police Department, their agents, servants and or employees including New York Police Officer Anzor Kurashvili, Shield Number 10498, in his individual and official capacity and John Doe, New York Police Officers 1-3, in their individual and official capacities and other members of the NYCPD, even though the Plaintiff had been engaged in no unlawful conduct. The NYCPD had no consent of Plaintiff to detain him and arrest him, and did so without any warrant or other legal process directing or authorizing his seizure, arrest, or detention, and without any reasonable cause to believe that Plaintiff had committed or was guilty of any offense.

18. Upon information and belief, following the arrest of the Plaintiff, Police officers from the 30th Police Precinct from the New York City Police Department, their agents, servants and or employees including New York Police Officer Anzor Kurashvili, Shield Number: 10498, in his individual and official capacity and John Doe, New York Police Officers 1-3, in their individual and official capacities and other members of the NYCPD arrested the Plaintiff, even though the Plaintiff had been engaged in no unlawful conduct. Said police officers and other members of the NYCPD caused Plaintiff to be booked on criminal charges. An accusatory instrument was signed by Police officers from the 30th Police Precinct from the New York City Police Department, their agents, servants and or employees including New York Police Officer Anzor Kurashvili, Shield Number: 10498, in his individual and official capacity and John Doe, New York Police Officers 1-3, in their individual and official capacities and other members of the NYCPD, and then filed with the Criminal Court of the City of New York, County of New York.

19. The charges which the Police officers from officers from the 30th Police Precinct from

the New York City Police Department, their agents, servants and or employees including New York Police Officer Anzor Kurashvili, Shield Number: 10498, in his individual and official capacity and John Doe, New York Police Officers 1-3, in their individual and official capacities and other members of the NYCPD and/or other members of the NYCPD caused to be brought against Plaintiff in the accusatory instrument were false.

20. The charges which other members of the NYCPD caused to be brought against Plaintiff in the accusatory instrument were false.

21. The Plaintiff was aware of his arrest and imprisonment.

22. Because of the aforesaid false accusations made by Police officers from the 30th Police Precinct from the New York City Police Department, their agents, servants and or employees including New York Police Officer Anzor Kurashvili, Shield Number: 10498, in his individual and official capacity and John Doe, New York Police Officers 1-3, in their individual and official capacities and other members of the NYCPD arrested Plaintiff who was forcibly and violently seized, arrested, held and taken to various secured facilities in Bronx County, City of New York, where the Plaintiff was deprived of his freedom, and detained and imprisoned against his will.

23. Upon information and belief, Police officers from officers from the 30th Police Precinct from the New York City Police Department, their agents, servants and or employees including New York Police Officer Anzor Kurashvili, Shield Number: 10498, in his individual and official capacity and John Doe, New York Police Officers 1-3, in their individual and official capacities and other members of the NYCPD, falsely, publicly, wickedly and maliciously accused the Plaintiff of having committed the criminal offenses for the ulterior purpose of covering up the misconduct of themselves and/or other members of the NYCPD.

24. Plaintiff was innocent of the said charges and upon information and belief was forced

by Police officers from officers from the 30th Police Precinct from the New York City Police Department, their agents, servants and or employees including New York Police Officer Anzor Kurashvili, Shield Number 10498, in his individual and official capacity and John Doe, New York Police Officers 1-3, in their individual and official capacities and other members of the NYCPD and/or other members of the NYCPD to submit to the aforesaid false arrest and/or imprisonment, entirely against his will.

25. That by reason of the aforesaid false arrest and unlawful imprisonment of August 21, 2013, the Plaintiff, JAMAL MCLEOD sustained severe and serious injuries, a severe shock to his nervous system and certain internal injuries, and was caused to suffer severe pain and mental anguish as a result thereof, and upon information and belief some of these injuries are of a permanent and lasting nature; was incapacitated from his regular activities; was hindered and prevented from performing and transacting his affairs and business; suffered neurological involvement and psychological distress, including but not limited to mental anguish, and pre-impact terror; suffered loss of enjoyment of life; was deprived of his liberty; was deprived of his rights, privileges and/or immunities as secured by the Constitution and/or other laws of the United States; suffered embarrassment, humiliation, shame, dishonor and loss of standing within the community and had medical expenses.

26. That by reason of the foregoing, the amount of damages sought exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

**THIRD CAUSE OF ACTION FOR ABUSE OF PROCESS AND MALICIOUS
PROSECUTION**

27. Plaintiff repeats, reiterates, and realleges each and every allegation of the Complaint in paragraphs “1” through “26” inclusive, with the same force and effect as if set forth at length

herein.

28. Upon information and belief, Police officers from officers from the 30th Police Precinct from the New York City Police Department, their agents, servants and or employees including New York Police Officer Anzor Kurashvili, Shield Number: 10498, in his individual and official capacity and John Doe, New York Police Officers 1-3, in their individual and official capacities and other members of the NYCPD and/or other members of the NEW YORK CITY POLICE DEPARTMENT caused the criminal action referred to hereinbefore (accusatory instrument) to be filed against Plaintiff in the Criminal Court of the City of New York, County of New York.

29. Upon information and belief, said Police officers from the Police officers from officers from the 30th Police Precinct from the New York City Police Department, their agents, servants and or employees including New York Police Officer Anzor Kurashvili, Shield Number: 10498, in his individual and official capacity and John Doe, New York Police Officers 1-3, in their individual and official capacities and other members of the NYCPD , falsely, publicly, wickedly and maliciously caused the aforementioned criminal action to be brought for the ulterior purpose of hiding the wrongful conduct of Police officers from officers from the 30th Police Precinct from the New York City Police Department, their agents, servants and or employees including New York Police Officer Anzor Kurashvili, Shield Number: 10498, in his individual and official capacity and John Doe, New York Police Officers 1-3, in their individual and official capacities and other members of the NYCPD and/or other members of THE NEW YORK CITY POLICE DEPARTMENT.

30. Upon information and belief, other members of THE NEW YORK CITY POLICE DEPARTMENT, falsely, publicly, wickedly, and maliciously caused the aforementioned criminal action to be brought for the ulterior purpose of hiding the wrongful conduct of Police officers from the Police officers from officers from the 30th Police Precinct from the New York City Police

Department, their agents, servants and or employees including New York Police Officer Anzor Kurashvili, Shield Number 10498, in his individual and official capacity and John Doe, New York Police Officers 1-3, in their individual and official capacities and other members of the NYCPD

31. Upon information and belief, Police officers from the Police officers from officers from the 30th Police Precinct from the New York City Police Department, their agents, servants and or employees including New York Police Officer Anzor Kurashvili, Shield Number 10498, in his individual and official capacity and John Doe, New York Police Officers 1-3, in their individual and official capacities and other members of the NYCPD wrongfully and unjustifiably caused the accusatory instrument referred to hereinbefore to be issued against Plaintiff.

32. That by reason of the aforesaid abuse of process and malicious prosecution, the Plaintiff, JAMAL MCLEOD, sustained severe and serious injuries, a severe shock to his nervous system and certain internal injuries, and was caused to suffer severe physical pain and mental anguish, as a result thereof, and upon information and belief some of these injuries are of a permanent and lasting nature; was incapacitated from his regular activities; was hindered and prevented from performing and transacting his affairs and business; suffered neurological involvement and psychological distress, including but not limited to mental anguish and pre-impact terror; suffered loss of enjoyment of life; was deprived of his liberty; was deprived of his rights, privileges and/or immunities as secured by the Constitution and/or other laws of the United States; suffered embarrassment, humiliation, shame, dishonor and loss of standing within the community and had medical expenses.

33. That by reason of the foregoing, the amount of damages sought exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

FOURTH CAUSE OF ACTION

WRONGFUL DEPRIVATION OF RIGHTS UNDER COLOR OF STATE LAW

34. Plaintiff repeat, reiterates, and realleges each and every allegation of the Complaint in paragraphs “1” through “33” inclusive, with the same force and effect as if set forth at length herein.

35. Upon information and belief, the acts of Police officers from the 30th Police Precinct from the New York City Police Department, their agents, servants and or employees including New York Police Officer Anzor Kurashvili, Shield Number 10498, in his individual and official capacity and John Doe, New York Police Officers 1-3, in their individual and official capacities and other members of the THE NEW YORK CITY POLICE DEPARTMENT and/or other members of were committed under color of state law.

36. Upon information and belief, the aforementioned acts of Police officers from 30th Police Precinct from the New York City Police Department, their agents, servants and or employees including New York Police Officer Anzor Kurashvili, Shield Number 10498, in his individual and official capacity and John Doe, New York Police Officers 1-3, in their individual and official capacities and other members of the THE NEW YORK CITY POLICE DEPARTMENT were committed under their authority as police officers vested under and by virtue of the laws of the State of New York.

37. That by reason of the aforesaid wrongful deprivation of rights, the Plaintiff, JAMAL MCLEOD, sustained severe and serious injuries, a severe shock to his nervous system and certain internal injuries, and was caused to suffer severe physical pain and mental anguish as a result thereof, and upon information and belief some of these injuries are of a permanent and lasting nature; was incapacitated from his regular activities; was hindered and prevented from performing and transacting his affairs and business; suffered neurological involvement and psychological distress, mental anguish and pre-impact terror; suffered loss of enjoyment of life; was deprived of his liberty; was deprived

of his rights, privileges and/or immunities as secured by the Constitution and/or other laws of the United States; suffered embarrassment, humiliation, shame, dishonor and loss of standing within the community and had medical expenses.

38. That by reason of the foregoing, the amount of damages sought exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

FIFTH CAUSE OF ACTION - NEGLIGENCE

39. Plaintiff repeat, reiterates, and realleges each and every allegation of the Complaint in paragraphs "1" through "38" inclusive, with the same force and effect as if set forth at length herein.

40. Upon information and belief, Police officers from the 30th Police Precinct from the New York City Police Department, their agents, servants and or employees including New York Police Officer Anzor Kurashvili, Shield Number: 10498, in his individual and official capacity and John Doe, New York Police Officers 1-3, in their individual and official capacities and other members of the THE NEW YORK CITY POLICE DEPARTMENT, in their capacities as police officers of the CITY OF NEW YORK, owe a special duty to exercise care in favor of Plaintiff and other members of the public: a) not to knowingly participate in the false arrest of an individual; b) not to falsely swear to an accusatory instrument; c) not to wrongfully detain an individual; d) not to treat an individual in custody in an inhumane manner; e) not to act in a demeaning manner to a person who is in custody; f) to comply with the POLICE DEPARTMENT OF THE CITY OF NEW YORK Patrol Guide and training manuals for NYCPD police officers; and g) to cause the arrest of an accused person only when there is probable cause to believe that the accused actually committed the crime(s) charged.

41. That at all times hereinafter mentioned, the involved 30th Police Precinct from the New York City Police Department, their agents, servants and or employees including New York Police Officer Anzor Kurashvili, Shield Number: 10498, in his individual and official capacity and John

Doe, New York Police Officers 1-3, in their individual and official capacities and other members of the THE NEW YORK CITY POLICE DEPARTMENT were negligent, careless and reckless in that they a) knowingly participated in the false arrest of the Plaintiff; b) falsely sworn to an accusatory instrument regarding the Plaintiff; c) wrongfully detained the Plaintiff; d) mistreated the Plaintiff, while she was in custody; e) failed to comply with the POLICE DEPARTMENT OF THE CITY OF NEW YORK police patrol guide and training manuals for CITY OF NEW YORK police officers with respect to the handling of the Plaintiff; and f) caused the arrest of the Plaintiff herein, even though there was no probable cause to believe that the Plaintiff had actually committed the crime(s) with which they were charged.

42. That by reason of the aforesaid negligence the Plaintiff, JAMAL MCLEOD, sustained severe and serious injuries, a severe shock to his nervous system and certain internal injuries, and was caused to suffer severe pain and mental anguish as a result thereof, and upon information and belief some of these injuries are of a permanent and lasting nature; was incapacitated from his regular activities; was hindered and prevented from performing and transacting his affairs and business; suffered neurological involvement and psychological distress, including but not limited to mental anguish and pre-impact terror; suffered loss of enjoyment of life; was deprived of his liberty; was deprived of his rights, privileges and/or immunities as secured by the Constitution and/or other laws of the United States; suffered embarrassment, humiliation, shame, dishonor and loss of standing within the community and had medical expenses.

43. That by reason of the foregoing, the amount of damages sought exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

SIXTH CAUSE OF ACTION

NEGLIGENCE IN THE HIRING, TRAINING

SUPERVISING, CONTROLLING, DISCIPLINING,

TESTING AND SCREENING BY THE CITY OF NEW YORK OF THEIR POLICE OFFICERS

44. Plaintiff, repeats, reiterates, and realleges each and every allegation of the Complaint in paragraphs “1” through “43” inclusive, with the same force and effect as if set forth at length herein.

45. Upon information and belief, THE CITY OF NEW YORK and THE POLICE DEPARTMENT OF THE CITY OF NEW YORK owe a duty to exercise care in favor of Plaintiff and other members of the public who are accused of criminal conduct in hiring, training, supervising, controlling, disciplining, testing and screening of those who are trained to become police officers, including but not limited to police officers from the 30th Police Precinct of the New York City Police Department, their agents, servants and or employees including New York Police Officer Anzor Kurashvili, Shield Number: 10498, in his individual and official capacity and John Doe, New York Police Officers 1-3, in their individual and official capacities and other members of the THE NEW YORK CITY POLICE DEPARTMENT

46. Upon information and belief, THE CITY OF NEW YORK AND THE POLICE DEPARTMENT OF THE CITY OF NEW YORK was negligent, careless, and reckless in the hiring, training, supervising, controlling, disciplining, testing, and screening of the involved Police officers from 30th Police Precinct of the New York City Police Department, their agents, servants and or employees including New York Police Officer Anzor Kurashvili, Shield Number 10498, in his individual and official capacity and John Doe, New York Police Officers 1-3 and members of THE NEW YORK CITY POLICE DEPARTMENT in that THE CITY OF NEW YORK and THE POLICE DEPARTMENT OF THE CITY OF NEW YORK;

a. Failed to properly instruct and train said Police officers from the 30th Police Precinct of the New York City Police Department, their agents, servants and or employees including New York Police Officer Anzor Kurashvili, Shield Number: 10498, in his individual and official capacity and John Doe, New York Police Officers 1-3 and other members of THE NEW YORK CITY POLICE DEPARTMENT with respect to the use of statements which are not true; “covering up”, identifying the wrongdoing of police officers by police officers, lying, making false official statements, causing false official statements to be filed, committing perjury, and suborning perjury and;

b. Failed to exercise due care and caution by hiring, retaining, and not disciplining said Police officers from the 30th Police Precinct of the New York City Police Department, their agents, servants and or employees including New York Police Officer Anzor Kurashvili, Shield Number: 10498, in his individual and official capacity and John Doe, New York Police Officers 1-3 and other members of THE NEW YORK CITY POLICE DEPARTMENT despite:

(1) the lack of judgment, mental capacity, ability, and temperament that these said Police officers from the 30th Police Precinct of the New York City Police Department, their agents, servants and or employees including New York Police Officer Anzor Kurashvili, Shield Number 10498, in his individual and official capacity and John Doe, New York Police Officers 1-3 and other members of THE NEW YORK CITY POLICE DEPARTMENT have displayed;

(2) the attempt of said Police officers from the 30th Police Precinct of the New York City Police Department, their agents, servants and or employees including New York Police Officer Anzor Kurashvili, Shield Number: 10498, in his individual and official capacity and John Doe, New York Police Officers 1-3 other members of THE NEW YORK CITY POLICE DEPARTMENT to cover up and lie about the circumstances surrounding the arrest of Plaintiff, when

police officers from the 30th Police Precinct of the New York City Police Department, their agents, servants and or employees including New York Police Officer Anzor Kurashvili, Shield Number: 10498, in his individual and official capacity and John Doe, New York Police Officers 1-3 other members of THE NEW YORK CITY POLICE DEPARTMENT caused the accusatory instruments and other official documents to be filed;

(3) the failure of said Police officers from the 30th Police Precinct of the New York City Police Department, their agents, servants and or employees including New York Police Officer Anzor Kurashvili, Shield Number: 10498, in his individual and official capacity and John Doe, New York Police Officers 1-3 and other members of THE NEW YORK CITY POLICE DEPARTMENT to comply with the POLICE DEPARTMENT OF THE CITY OF NEW YORK Patrol Guide and police training manuals for CITY OF NEW YORK police officers; and

(4) the propensity of said Police officers from the 30th Police Precinct of the New York City Police Department, their agents, servants and or employees including New York Police Officer Anzor Kurashvili, Shield Number: 10498, in his individual and official capacity and John Doe, New York Police Officers 1-3 and other members of THE NEW YORK CITY POLICE DEPARTMENT for untruthful and/or fraudulent behavior.

47. That by reason of the aforesaid negligence, the Plaintiff, JAMAL MCLEOD, sustained severe and serious injuries, a severe shock to his nervous system and certain internal injuries, and was caused to suffer severe pain and mental anguish as a result thereof, and upon information and belief some of these injuries are of a permanent and lasting nature; was incapacitated from his regular activities; was hindered and prevented from performing and transacting his affairs and business; suffered neurological involvement and psychological distress, including but not limited to mental anguish and pre-impact terror; suffered loss of enjoyment of life; was deprived of his liberty; was

deprived of his rights, privileges and/or immunities as secured by the Constitution and/or other laws of the United States; suffered embarrassment, humiliation, shame, dishonor and loss of standing within the community and had medical expenses.

48. Upon information and belief, the limitations of liability set forth in Article 1601 of the CPLR do not apply to the cause of action set forth herein, or that one or more of the exemptions set forth in Section 1602 do apply to the facts of other case.

49. The Plaintiff herein has complied with all of the conditions precedent to bringing this action against the defendant CITY.

a. A Notice of Claim was served upon the defendant, CITY, within ninety days after the date of occurrence pursuant to law.

b. At least thirty (30) days have elapsed prior to the commencement of this action since the claim was presented to said defendant for adjustment as aforesaid, and the defendant has refused to adjust or make payment thereof for thirty (30) days after said presentation.

c. This action was commenced within one year and ninety days after the cause of action thereof occurred.

WHEREFORE, that by reason of the foregoing, the amount of damages sought exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction, together with the costs and disbursements of this action.

Dated: New York, New York

March 25, 2015

Yours, etc.

MARNI F. SCHLESINGER, ESQ.
Apicella & Schlesinger
Attorney for Plaintiff
1454 St. Nicholas Avenue

New York, New York 10033
(212) 568-4245